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Buyer Disclosures

The undersigned acknowledges the receipt of the following items from their Keller Williams Realty Broker:

- Real Estate Brokerage in Washington Pamphlet
- KW Buyer Advisory (initials required)
- Guide to Obtaining a Home Inspection (signature required)
- Home Inspector Referral Disclosure – 41D (signature required)
- Wire Fraud Disclosure (signature required)
- Disclosure of Affiliated Business Relationships (signature required)
- Lead Based Paint Pamphlet
- Guide to Moisture, Mold and Your Home
- Side Sewer Handout (Tacoma)

AuthentiSIGN
Eric Hill 10/10/24

Buyer Signature Date

Buyer Signature Date

8.15.2024

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Real Estate Brokerage in Washington

Introduction

This pamphlet provides general information about real estate brokerage and summarizes the laws related to real estate brokerage relationships. It describes a real estate broker's duties to the seller/landlord and buyer/tenant. Detailed and complete information about real estate brokerage relationships is available in chapter 18.86 RCW.

If you have any questions about the information in this pamphlet, contact your broker or the designated broker of your broker's firm.

Licensing and Supervision of Brokers

To provide real estate brokerage services in Washington, a broker must be licensed under chapter 18.85 RCW and licensed with a real estate firm, which also must be licensed. Each real estate firm has a designated broker who is responsible for supervising the brokers licensed with the firm. Some firms may have branch offices that are supervised by a branch manager and some firms may delegate certain supervisory duties to one or more managing brokers.

The Washington State Department of Licensing is responsible for enforcing all laws and rules relating to the conduct of real estate firms and brokers.

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Agency Relationship

In an agency relationship, a broker is referred to as an "agent" and the seller/landlord and buyer/tenant is referred to as the "principal." For simplicity, in this pamphlet, seller includes landlord, and buyer includes tenant.

For Sellers

A real estate firm and broker must enter into a written services agreement with a seller to establish an agency relationship. The firm will then appoint one or more brokers to be agents of the seller. The firm's designated broker and any managing broker responsible for the supervision of those brokers are also agents of the seller.

For Buyers

A real estate firm and broker(s) who perform real estate brokerage services for a buyer establish an agency relationship by performing those services. The firm's designated broker and any managing broker responsible for the supervision of that broker are also agents of the buyer. A written services agreement between the buyer and the firm must be entered into before, or as soon as reasonably practical after, a broker begins rendering real estate brokerage services to the buyer.

For both Buyer and Seller - as a Limited Dual Agent

A limited dual agent provides limited representation to both the buyer and the seller in a transaction. Limited dual agency requires the consent of each principal in a written services agreement and may occur in two situations: (1) When the buyer and the seller are represented by the same broker, in which case the broker's designated broker and any managing broker responsible for the supervision of that broker are also limited dual agents; and (2) when the buyer and the seller are represented by different brokers in the same firm, in which case each broker solely represents the principal the broker was appointed to represent, but the broker's designated broker and any managing broker responsible for the supervision of those brokers are limited dual agents.

Duration of Agency Relationship

Once established, an agency relationship continues until the earliest of the following:

1. Completion of performance by the broker;
2. Expiration of the term agreed upon by the parties;
3. Termination of the relationship by mutual agreement of the parties; or
4. Termination of the relationship by notice from either party to the other. However, such a termination does not affect the contractual rights of either party.

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Written Services Agreement

A written services agreement between the firm and principal must contain the following:

1. The term (duration) of the agreement;
2. Name of the broker(s) appointed to act as an agent for the principal;
3. Whether the agency relationship is exclusive (which does not allow the principal to enter into an agency relationship with another firm during the term) or nonexclusive (which allows the principal to enter into an agency relationship with multiple firms at the same time);
4. Whether the principal consents to limited dual agency;
5. The terms of compensation;
6. In an agreement with a buyer, whether the broker agrees to show a property when there is no agreement or offer by any party or firm to pay compensation to the broker's firm; and
7. Any other agreements between the parties.

A Broker's Duties to All Parties

A broker owes the following duties to all parties in a transaction:

1. To exercise reasonable skill and care;
2. To deal honestly and in good faith;
3. To timely present all written offers, written notices, and other written communications to and from either party;
4. To disclose all existing material facts known by the broker and not apparent or readily ascertainable to a party. A material fact includes information that substantially adversely affects the value of the property or a party's ability to perform its obligations in a transaction, or operates to materially impair or defeat the purpose of the transaction. However, a broker does not have any duty to investigate matters that the broker has not agreed to investigate;
5. To account in a timely manner for all money and property received from or on behalf of either party;
6. To provide this pamphlet to all parties to whom the broker renders real estate brokerage services and to any unrepresented party;
7. To disclose in writing who the broker represents; and
8. To disclose in writing any terms of compensation offered by a party or a real estate firm to a real estate firm representing another party.

A Broker's Duties to the Buyer or Seller

A broker owes the following duties to their principal (either the buyer or seller):

1. To be loyal to their principal by taking no action that is adverse or detrimental to their principal's interest in a transaction;
2. To timely disclose to their principal any conflicts of interest;
3. To advise their principal to seek expert advice on matters relating to the transaction that are beyond the broker's expertise;
4. To not disclose any confidential information from or about their principal; and
5. To make a good faith and continuous effort to find a property for the buyer or to find a buyer for the seller's property, until the principal has entered a contract for the purchase or sale of property or as agreed otherwise in writing.

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Limited Dual Agent Duties

A limited dual agent may not advocate terms favorable to one principal to the detriment of the other principal. A broker, acting as a limited dual agent, owes the following duties to both the buyer and seller:

1. To take no action that is adverse or detrimental to either principal's interest in a transaction;
2. To timely disclose to both principals any conflicts of interest;
3. To advise both principals to seek expert advice on matters relating to the transaction that are beyond the limited dual agent's expertise;
4. To not disclose any confidential information from or about either principal; and
5. To make a good faith and continuous effort to find a property for the buyer and to find a buyer for the seller's property, until the principals have entered a contract for the purchase or sale of property or as agreed otherwise in writing.

Compensation

In any real estate transaction, a firm's compensation may be paid by the seller, the buyer, a third party, or by sharing the compensation between firms. To receive compensation from any party, a firm must have a written services agreement with the party the firm represents (or provide a "Compensation Disclosure" to the buyer in a transaction for commercial real estate).

A services agreement must contain the following regarding compensation:

1. The amount the principal agrees to compensate the firm for broker's services as an agent or limited dual agent;
2. The principal's consent, if any, and any terms of such consent, to compensation sharing between firms and parties; and
3. The principal's consent, if any, and any terms of such consent, to compensation of the firm by more than one party.

Short Sales

A "short sale" is a transaction where the seller's proceeds from the sale are insufficient to cover seller's obligations at closing (e.g., the seller's outstanding mortgage is greater than the sale price). If a sale is a short sale, the seller's real estate firm must disclose to the seller that the decision by any beneficiary or mortgagee, to release its interest in the property for less than the amount the seller owes to allow the sale to proceed, does not automatically relieve the seller of the obligation to pay any debt or costs remaining at closing, including real estate firms' compensation.

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Keller Williams H4IT Seller Advisory
September 2021
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BUYER ADVISORY – RESIDENTIAL PROPERTY

Keller Williams H4IT Firms ("Keller Williams") recognizes that in today's "seller's market" Buyers may waive contract addenda, contingencies, conditions or statutory rights in order for their offer to be accepted by a Seller only to be disappointed before closing should the transaction fail to close and they forfeit their earnest money deposit or after closing when the property they purchased is not of the quality they assumed. Buyers should be very careful about waiving contract addenda, contingencies, conditions or statutory rights which benefit them.

THE FOLLOWING IS AN EXAMPLE OF STATUTORY RIGHTS, ADDENDA, CONTINGENCIES, CONDITIONS AND OTHER ISSUES BUYERS SHOULD CONSIDER WHEN MAKING THEIR OFFER:

A. STATUTORY RIGHTS.

1. NWMLS FORM 17 DISCLOSURE STATEMENT-IMPROVED PROPERTY- RCW 64.06.

EXPLANATION. Unless exempt, a Seller of residential real property must deliver to the Buyer a completed, signed, and dated Seller Disclosure Statement (NWMLS - Form 17) (Form 17) within five business days of executing a written purchase and sale agreement. The Buyer can waive the right to receive Form 17, except if Seller's answer to any questions in the "Environmental" Section would be "yes", then the Buyer may not waive receipt of the "Environmental" Section. Form 17 contains many disclosures material to Buyer's decision to purchase the property, including condition of Seller's title, the property's water resources, the quality of sewer or septic system, the condition of improvements, information regarding the homeowner's association, environmental and lead paint risks. Upon receipt of Form 17, the Buyer has three business days (unless otherwise agreed), to rescind at Buyer's sole discretion and obtain a return of the earnest money deposit.

Buyer is reminded that it has three signing options upon receipt of Form 17:
Option 1 - Paragraph III (1). Simply acknowledge receipt. In doing so, Buyer retains all rights to rescind within the 3-day review period.
Option 2 - Paragraph III (2). Following receipt, review and approval of Form 17, execute this paragraph which waives Buyer's right to rescind; and
Option 3 - Paragraph III (3). An acknowledgment by Buyer that it is waiving its right to receive a completed Form 17, except that it may not waive the right to receive the "Environmental" section if any answer to the section would be "yes".

Buyers are highly cautioned that the best practice upon receipt of Form 17 is to simply execute Paragraph III (1) acknowledging receipt and not to execute Paragraph III (2) revoking their right to rescind until they have conducted a thorough review of Form 17 within the three-day review period.

Your Keller Williams broker can provide you with a sample Form 17.

2. RESALE CERTIFICATE.

A. CONDOMINIUMS--RCW 64.34.425.

EXPLANATION. Upon the second and subsequent sales of a residential condominium, the Homeowner's Association ("HOA") will provide the prospective Buyer with a Resale Certificate. The Resale Certificate is prepared by the HOA and must be signed by the Seller. The Resale Certificate provides material information about the Seller and the condominium, including, for example,

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delinquent Seller assessments, the current special and general assessments imposed, whether a reserve study exists outlining future projects for the condominium and projected costs, the financial condition of the HOA, any limits imposed by the Declaration, Bylaws, Rules and/or Regulations related to such subjects as leasing, pets, rights of the owner to repair or remodel its unit or limited common area, smoking and HOA insurance coverage. NWMLS Form 28 ONLY gives the Buyer 5 days (unless otherwise agreed) to approve the Resale Certificate. The Buyer is advised to review the Resale Certificate with its attorneys, accountants and/or other professionals to assure Buyer fully understands its rights and responsibilities when purchasing the condominium. If the Buyer timely disapproves the Resale Certificate, the transaction is terminated, and the Buyer is entitled to a return of its earnest money deposit. Buyer is cautioned that for condominiums which are not Common Interest Communities, the statute requiring the issuance of the Resale Certificate does not require that the HOA minutes be included, although often they are therefore, Buyer should include NWMLS Form 22D (discussed hereafter) in its offer to assure receipt of the HOA minutes.

B. COMMON INTEREST COMMUNITIES—RCW 64.90.640

EXPLANATION: The Washington Uniform Common Interest Ownership Act (WUCIOA). RCW, Ch. 60.40. established entities called "Common Interest Communities" (CIC), which include condominiums, cooperatives and plat communities, such as short subdivisions and subdivisions, created after July 1, 2018, or pre-existing communities which affirmatively opt into WUCIOA, for which a Resale Certificate is also required. (EXEMPTION: A developer may opt out of WUCIOA if there are 12 or fewer units and the annual assessment, exclusive of insurance and optional fees does not exceed $300). If you are purchasing a CIC which requires a Resale Certificate, your Keller Williams broker will include NWMLS Form 22 CIC providing for a Resale Certificate as a condition of your purchase.

3. KING COUNTY SEPTIC SYSTEMS – KING COUNTY HEATLH CODE 13.60.030.

EXPLANATION. King County requires Sellers of any single or multi-family residential property served by an on-site septic system (OSS) to have their OSS inspected by a licensed On-Site System Maintainer (OSM) PRIOR to selling the property. Only Sellers who have had an inspection performed within 6 months prior to the sale are exempt from this requirement. A copy of the inspection report must be given to the Buyer PRIOR to the transfer along with all available maintenance records. NWMLS forms 22 S (King County Addendum) is used to implement these requirements and during the septic contingency period, the Buyer may reject the inspection report at Buyer's sole discretion. The Buyer is advised that waiver of this OSM requirement may result in Buyer acquiring a property with an inadequate or failed septic system. Buyer is also advised about the importance of retaining its owned licensed septic engineer or designer to inspect the septic system. This can be accomplished through Keller Williams Form 11, Addendum for Buyer's Septic Inspection. Buyer should also conduct its own independent review of the Health Department maintenance records of the OSS.

4. PIERCE COUNTY SEPTIC SYSTEMS. TACOMA-PIERCE COUNTY ENVIRONMENTAL HEALTH CODE-CH 2, RESOLUTION 2014-4414.

EXPLANATION. Pierce County prohibits the completion of a real estate sale on property served by an OSS without a Report of System Status (RSS) issued by the Health Department; provided, properties where a new OSS has been in service for less than six months are exempt from this requirement. Seller is required to contact a certified Operation and Maintenance firm (O&M) and request an Onsite Sewage Inspection. The O&M inspector will check the OSS and enter the information into an electronic data base known as online RME. The Seller must also submit to the Health Department the RSS application. The Health Department has 10 business days to complete the inspection and issue the report. The health officer will not issue the RSS if the OSS has an unresolved critical service item, significant defect, is failing, or is not in compliance with Health Department regulations (a "Defective Condition"). If the Defective Condition(s) cannot be corrected before closing, the Seller shall provide the Health Department with a contract or work order from a certified OSS professional to correct the Defective Condition(s), and if the health officer is satisfied with the proposed remedy, a conditional RSS may be issued subject to Seller's

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obligation to correct the Defective Condition(s) within 90 days of closing. NWMLS Form 22 WW is used to implement these requirements. The Buyer may reject the inspection report at Buyer's sole discretion during the septic contingency period. Buyer is also advised about the importance of retaining its owned licensed septic engineer or designer to inspect the septic system. This can be accomplished through Keller Williams Form 11, Addendum for Buyer's Inspection. Buyer should also conduct its own independent review of the Health Department maintenance records of the OSS.

5. SNOHOMISH COUNTY SEPTIC SYSTEMS

EXPLANATION. Snohomish County does NOT have a pre-closing OSS inspection regulation like King, Kitsap or Pierce Counties. The Snohomish Health Department has established an online data base entitled "DAVE" (Drainfield Awareness and Vital Education) (dave.snohd.org). This website provides information about a property's OSS, including its "as built" drawings, system type, and in some cases, specific maintenance and other permit activity. NWMLS Form 22S provides for review of the Health Department maintenance records and if the OSS has not been pumped, if necessary, and inspected within 12 months of mutual acceptance, it shall be inspected and pumped by an OSS service company selected by Seller. During the septic contingency period, the Buyer, at its sole discretion may reject this report. Buyers are cautioned that an OSS service company report is not a substitute for a full inspection by a licensed septic engineer or septic designer of Buyer's choice. Buyers are cautioned to undertake such a review. This can be accomplished through Keller Williams Form 11, Addendum for Buyer's Inspection.

6. KITSAP COUNTY SEPTIC SYSTEMS. KITSAP COUNTY HEALTH DISTRICT ORDINANCE 2008-01.

EXPLANATION. Subject to certain exemptions, Kitsap County requires that the Seller submit a Property Conveyance Inspection Application (PCA) to the Kitsap County Health District (Health District). To complete the PCA, the Seller must conduct a records search on the Health District's website. Within 7 days of receipt of the PCA, an Environmental Health Specialist (Health Officer) will inspect the property and septic area, review inspection reports, determine the status of the septic system and issue a Property Conveyance Inspection Report (PCI). The PCI will identify defects which must be immediately corrected by the Seller, and other items which are in non-compliance (Non-Compliance Items). The Buyer and Seller will negotiate regarding which party will remediate the Non-Compliance Items. NWMLS Form 22UU is used to implement these requirements. During the septic contingency period, the Buyer, at its sole discretion, may reject the report. Buyer is also advised about the importance of obtaining its own septic engineer or designer to inspect the septic system. This can be accomplished through Keller Williams Form 11, Addendum for Buyer's Inspection. Buyer should also conduct its own independent review of the Health Department's maintenance records of the OSS.

7. ABANDONED OIL TANKS- MODEL TOXICS CONTROL ACT (MTCA)- RCW 70.105D

EXPLANATION. Many older homes have abandoned oil tanks (Most local jurisdictions consider any oil tank out of use for more than one year as abandoned). Some of the tanks have been removed, others have been decommissioned in place, yet many simply remain in place without remediation. Recent case law interpreting the Model Toxics Control Act (MTCA) has held owners of homes with abandoned oil tanks strictly liable for hazardous releases during their ownership, notwithstanding that these releases occurred without intent or negligence on the part of these owners. Damages for remediation can exceed six figures. Buyers of homes with abandoned oil tanks are cautioned to conduct their own inspection of the abandoned oil tank through a qualified decommission expert. This can be accomplished through Keller Williams Form 10, Addendum for Abandoned Oil Tank Inspection by Buyer.

8. EXISTING OIL TANKS – HEATING OIL POLLUTION LIABILITY INSURANCE PROGRAM - RCW 70.149.

EXPLANATION. Under the state's Pollution Liability Insurance4 Agency (PLIA), if a Seller has registered its active oil tank with PLIA prior to July 2, 2020, that registration can be transferred to its Buyer if done within 180 days of purchase and the Buyer has up to $60,000 in coverage from contamination

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relating back to the date of purchase. After July 1, 2020, no new registrations for PLIA insurance were accepted, rather, PLIA's Heating Oil Insurance Program began transitioning to a Loan and Grant Program, which provides up to $75,000 for heating oil tank owners to: (a) Pay for site assessment and cleanup of releases; (b) Upgrade, replace and remove heating oil tank systems to prevent future releases; and (c) Install new infrastructure. Accepted applicants will receive a grant up to $5,000 to determine the level of cleanup required and anticipated costs.

9. SMOKE DETECTORS AND CARBON MONOXIDE ALARMS – RCW 44.44.110 & RCW 19.27.530.

EXPLANATION. The Seller must assure that the property is fully equipped with operational smoke detectors and carbon monoxide alarms prior to Buyer undertaking inspection. Buyer should confirm compliance with these requirements.

B. CONTINGENCIES AND ADDENDA BENEFITING BUYERS

I. CONTINGENCIES

DEFINITION. A Buyer contingency is a contractual condition which if not met allows the Buyer to terminate the transaction and, unless otherwise agreed, obtain a return of its earnest money deposit assuming that the Buyer in good faith complied with its obligations under the contingency. EXAMPLES OF CONTINGENCIES WHICH MAY BE MATERIAL TO BUYER'S PURCHASE ARE SET FORTH BELOW:

1. INSPECTION CONTINGENCY-NWMLS FORM 35.

EXPLANATION. The Inspection Contingency allows the Buyer to inspect the property with an inspector(s) of Buyer's choice including a licensed inspector, and specialists (e.g. plumbers, electricians, roofers, etc.) , terminate the contract based upon Buyer's subjective disapproval of any defect found or in return for waiving the Inspection Contingency, ask for Seller's concessions in the form of repairs or modification of contract terms, the latter typically in the form of a reduction of the purchase price. Outright waiver of the Inspection Contingency can result in Buyer's failure to identify a material defect(s) in the property.

Buyer is also cautioned that once it identifies a defect, it has a duty to conduct such further inspections as are necessary to determine the full nature and effect of the defect (s). Failure to do so will likely preclude any post-closing damages claim against Seller even if the Seller intentionally concealed the defect.

In addition to an inspection under NWMLS Form 35 after mutual execution of the sale agreement, as an alternative, the Buyer can offer to conduct an inspection PRIOR to making its offer under NWMLS Form 35P-Pre-Inspection Agreement. Buyer is cautioned that the Pre-Inspection should be of the same quality as one undertaken after mutual acceptance under NWMLS Form 35 in order to assure that defects are identified. If Buyer conducts a Pre-Inspection, its offer shall include an NWMLS Form 35W indicating that it is either waiving further inspection or outlining the repairs and/or modifications sought by Buyer resulting from the Pre-Inspection.

If the Buyer conducts an inspection, and requires that the Seller complete repairs prior to closing, conflict can occur between Buyer and Seller regarding the quality of repairs to be undertaken by Seller, the date of completion of the repairs, and Buyer's right to re-inspect the work. Some Sellers will demand that the Buyer close even though the Buyer contests the adequacy of repairs. This can result in a dispute over the earnest money deposit if the Buyer refuses to close, with the Seller claiming that the value of the required repairs were not "material" to the transaction and Buyer was required to close even though the repairs were not completed or defective. To avoid this conflict, Keller Williams Addendum 12, Repair Addendum may be used to compel Seller to make the repairs, allow the Buyer time to re-inspect, and extend closing or allow Buyer to terminate if the repairs are inadequate. This is

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an alternative to NWMLS Form 35 which does not allow an extension of closing to certify the adequacy of repairs.

A Seller may give a Buyer an inspection report which was procured by the Seller ("Seller Procured Inspection Report") and intended by the Seller to be part of the Seller Disclosure Statement (NWMLS – Form 17). Buyer is strongly cautioned that this Seller Procured Inspection Report is not a substitute for an inspection procured by Buyer's own professional inspector(s) (a "Buyer's Inspection"). If Buyer is given a Seller Procured Inspection Report, Buyer will be asked to execute Keller Williams Form 16, Notice of Seller Inspection Report acknowledging that Buyer has been advised that the Seller Procured Inspection Report is given for informational and disclosure purposes only, and is not a substitute for a Buyer's Inspection.

BUYER IS REMINDED THAT IT MAY NOT DISCLOSE THE RESULTS OF ITS INSPECTION TO SELLER WITHOUT SELLER'S CONSENT. IF IT DOES, IT WAIVES THE INSPECTION CONTINGENCY!

2. FINANCING CONTINGENCY-NWMLS FORM 22A.

EXPLANATION. The Financing Contingency, NWMLS Form 22A, contains the following options to be negotiated between Buyer and Seller: (a). Option 1: Allows the Buyer to choose the type of financing (i.e., conventional, FHA, VA, USDA, HELOC or other), amount of down payment, but at any time after 21 days (unless otherwise agreed), allows the Seller to request that the Buyer waive the Financing Contingency, and if it fails to do so, the Seller may terminate the transaction: (b). Option 2: Buyer is deemed to have waived the Financing Contingency unless within 21 days (unless otherwise agreed), it gives notice of termination of the Agreement; and (c). Option 3: Even if the Buyer waives the Financing Contingency under Option 1 or 2, the parties will negotiate whether the Buyer will have the following rights if there is a low appraisal: (i) Reduce the purchase price to the appraised value; (ii) Provide an appraisal at the purchase price that lender accepts; or (iii) Propose via NWMLS Form 22AN, Notice of Low Appraisal, a new purchase price less than the original purchase price, but more than the appraisal, in which Buyer agrees to pay the difference.

Some Buyers utilizing NWMLS Form 22A may choose to enhance their offer should the property appraise at less than the purchase price. They can include an addendum in their initial offer to increase their down payment by a given amount should that occur. This can be accomplished with NWMLS Form 22AD – Increased Down Payment for Low Appraisal Addendum.

Some Buyers may choose to waive the Financing Contingency but make their purchase subject to an appraisal at the purchase price. This can be accomplished through NWMLS Form 22AA. These Buyers may also choose to enhance their offer should be property appraise at less than the purchase price by increasing their down payment using NWMLS Form 22AD. Buyers are strongly cautioned that if they have included an NWMLS Form 22AD in their offer, if the appraisal comes in low, and they respond by giving the Seller a Notice of Low Appraisal under NWMLS Form 22 ADN, the Seller may elect to terminate the transaction, a potentially unacceptable result for a Buyer in a multiple-offer scenario.

Some Buyers may choose to waive the Financing Contingency, not make their purchase subject to an appraisal but may want to have a lender required inspection or appraisal. In this scenario, the Seller is not obliged to grant Buyer the right to a lender required inspection and/or appraisal unless the parties have agreed in writing to allow for such. This can be accomplished with Keller Williams Form 13, Lender Inspection and Appraisal – Non-Financing Contingency.

GIVEN THE VERY SHORT TIME FRAMES FOR BUYER'S WAIVER OF THE FINANCING CONTINGENCY, BUYERS ARE STRONGLY CAUTIONED TO RETAIN AN EXPERIENCED LENDER WHO CAN PROCESS THE LOAN DOCUMENTS, FULLY UNDERWRITE THE LOAN AND COORDINATE THE APPRAISAL IN TIME FRAMES THAT MAY BE 21 DAYS OR LESS. FAILURE TO DO SO MAY RESULT IN TERMINATION OF THE TRANSACTION BY SELLER

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AND/OR FORFEITURE OF THE EARNEST MONEY DEPOSIT BY BUYER. BUYERS MUST ALSO WORK CLOSELY WITH THEIR LENDER IN ASSEMBLING A COMPLETE LOAN APPLICATION AS EARLY AS POSSIBLE, TYPICALLY WELL BEFORE MUTUAL ACCEPTANCE OF THEIR OFFER.

BUYERS ARE CAUTIONED THAT IF THEY RECEIVE A LOW APPRIASAL, GIVE THE SELLER NOTICE OF LOW APPRAISAL, AND IN RESPONSE, THE SELLER PROPOSES A NEW PRICE ABOVE THE APPRAISED AMOUNT, BUT LESS THAT THE ORIGINAL PURCHASE PRICE, IF BUYER ACCEPTS THIS OFFER, AT CLOSING ITS DOWN PAYMENT WILL CONSIST OF THE ORIGINAL DOWN PAYMENT PROPOSED, PLUS THE DIFFERENCE BETWEEN THE APPRAISED AMOUNT AND THE NEW PURCHASE PRICE.

3. TITLE CONTINGENCY- NWMLS FORM 22T.

EXPLANATION. NWMLS FORM 22T allows the Buyer to review and approve all recorded title exceptions such as easements, covenants, restrictions, condominium declaration, survey conditions, and post-closing assessments which may affect Buyer's ownership (an "Encumbrance"). If the Buyer objects to an Encumbrance, the Seller has until closing to remove the Encumbrance, and if it cannot, Buyer may terminate and obtain a return of its earnest money deposit. The use of this Title Contingency allows the Buyer to confirm that the Encumbrance(s) will not affect Buyer's intended use of the property.

4. INFORMATION VERIFICATION PERIOD CONTINGENCY-PARAGRAPH W-NWMLS FORMS 21(RESIDENTIAL), 25(VACANT LAND), & 28 (CONDOMINIUM).

EXPLANATION. NWMLS FORMS 21, 25 and 28 contain Paragraph W, which grants the Buyer 10 days to verify all information provided by the Seller or Listing Brokerage Firm (the "Seller Information"). Examples would be disclosures made by the Seller under Form 17 and any input provided to Buyer through the Listing Broker's Listing Input Sheet, NWMLS Form 1, such as lot size, year built, school district, lot topography, unique site features, view, water, sewer and/or septic connection, energy source(s), appliances that stay and any shared community features offered through an HOA. If the Buyer identifies materially inaccurate Seller Information, the Buyer can terminate and obtain a return of its earnest money deposit. Many buyers in multiple offer situations are striking this provision which puts them at risk if they rely on the Seller Information that is materially inaccurate.

5. LIEN FOR UNRECORDED UTILITY CHARGES-NWMLS FORM 22K

EXPLANATION. Chapter 60.80 RCW provides that unless waived in writing by Seller and Buyer, the Closing Agent must disburse closing funds to satisfy the lienable utility charges, such as water, light, power services and sewer. NWMLS Form 22K is the addendum used to effectuate RCW 60.80. If used, a utility cannot recover from the Buyer unpaid utility charges incurred prior to closing in excess of the utility's estimated final billing submitted to the closing agent. Buyer is cautioned about the importance of utilizing NWMLS Form 22K to assure that a utility does not lien the property post-closing for pre-closing utility charges payable by the Seller. It is also the responsibility of the Seller to terminate the utility service at the date of closing, AND THAT OF THE BUYER TO SET UP A NEW ACCOUNT EFFECTIVE ON CLOSING. The Closing Agent does not undertake this responsibility.

II. BUYER FRIENDLY ADDENDA

1. OPTIONAL CLAUSES ADDENDUM-NWMLS FORM 22D

EXPLANATION. NWMLS FORM 22D contains both contingencies and provisions of importance to the Buyer. A Buyer of a condominium or property located within a covenanted community is benefited by Section 8-Homeowner's Association ("HOA") Review Period Contingency (the "Review Contingency"), which allows the Buyer to review HOA documents, such as minutes, by-laws,

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covenants, conditions and restrictions, rules and regulations. In a condominium not governed by WUCIOA (see Section 2 B), given the Resale Certificate does not require the HOA to provide minutes, the Buyer is cautioned to utilize the Review Contingency in order to review the minutes, which often disclose owner concerns or pending, but not yet approved, special assessments. The Buyer typically has 5 days (unless otherwise agreed) to approve the documents received under the Review Contingency, and if this contingency is disapproved, the Buyer may terminate and obtain a return of its earnest money deposit.

NWMLS FORM 22D also contains provisions pertaining to Seller's obligation to deliver the property in a clean and sanitary condition, remove all personal property not acquired by Buyer, represent the nature of the utilities serving the property, state whether Buyer is expected to assume leases of personal property, set forth items excluded from the sale, indicate whether there is a Homeowner Transfer Fee owing the HOA upon closing, and if new construction, provide Buyer with the FTC required insulation disclosures. If Buyer opts to have Seller clean the property, Buyer should insist that it be done by professional cleaners to assure a high standard of cleanliness.

C. OTHER MULTIPLE OFFER CONCERNS.

1. NON-REFUNDABLE EARNEST MONEY DEPOSITS.

EXPLANATION. To enhance offers, Buyers are offering large non-refundable earnest money deposits. The offer may direct escrow to immediately disburse the earnest money to the Seller or the earnest money may remain in the possession of a Buyer Brokerage Firm or Closing Agent pending closing. In either case, if Seller defaults, the Buyer may lose the earnest money deposit or be faced with protracted litigation to obtain its return. If Buyer chooses to place a non-refundable earnest money deposit, Keller Williams Form 14, Non-Refundable Earnest Money Addendum may be used for that purpose and does provide Buyer a remedy if Seller defaults.

2. BANK OWNED PROPERTY AND NEW CONSTRUCTION.

EXPLANATION – REO's. Buyers may opt to make offers on bank owned property or REO's (Real Estate Owned). These properties are generally acquired by a lender through a foreclosure process and the lender may have limited knowledge about the property's condition. Lenders utilize their own sale agreements or addenda (the "Lender Agreement"), which normally supersede the NWMLS forms. Typically, lenders will not negotiate on the provisions in their Lender Agreement(s). Lender timelines will likely be different than the timelines set forth in the NWMLS forms, particularly regarding inspection and financing contingencies. Lenders may also refuse to make repairs or conduct inspections even though mandated by local law (e.g., Septic), may refuse to provide Form 17 although mandated by state law, may require the Buyer to pay the excise tax, contrary to local practice and require the Buyer accept the property in its "AS-IS" condition. Buyers are strongly cautioned to verify the adequacy of all utilities, obtain all inspections and title analysis necessary to make an informed decision to purchase and review the Lender Agreement with a real estate attorney before executing. Keller Williams Form 15, Attorney Review Addendum, may be used to allow Buyer's attorney to review and approve the Lender Agreement.

EXPLANATION-NEW CONSTRUCTION. The Sellers of new construction, especially large corporate entities, will have their own sale agreement or addenda (the "New Construction Agreement") which normally supersede the NWMLS forms. There may be attempts to limit the Buyer's ability to inspect the property before closing, limit Buyer's warranties, provide for non-refundable earnest money or otherwise restrict Buyer's rights. The Buyer is cautioned to review the New Construction Agreement with a real estate attorney, do its own due diligence by interviewing others who have purchased homes from the Seller-Contractor, check the permit file to assure all permits were properly issued and signed-off, and review the Department of Labor and Industries website to assure that the Seller-Contractor is in full compliance with the Contractor's Registration Act. Keller Williams Form 15, Attorney Review Addendum, may be used to allow Buyer's attorney to review and approve the New Construction Agreement.

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Buyer is also cautioned that if it agrees to assume all charges/assessments/impact fees which accrue prior to closing, but are payable after closing, an option under NWMLS Form 21 (residential purchase), 25 (vacant land purchase) or 28 (condominium purchase) it may be assuming significant and ongoing liability to pay for both on-site and off-site public improvements projects imposed by city, county, state, port and other municipalities, including, but not limited to, sewer, water and storm capacity charges, and local improvement district obligations for water, fire, road, utilities, transit and schools. Buyer is advised to check with these jurisdictions to determine the amount of such post-closing charges.

3. POST CLOSING LEASE TO SELLER.

EXPLANATION. Sellers often need time to find a new residence after closing. Buyers often accommodate Sellers by entering post-closing leases, which may be for several months or more. Buyers are cautioned that such post-closing leases have potential risks, including: (a) The lease may violate Buyer's covenant to its lender that the property be owner occupied; (b) Seller-tenant may not maintain the property, pay utilities or have an adequate damage deposit; (c) Buyer's insurance may be based upon owner occupancy, not a rental, and (d) Federal, state and/or local regulations may place restrictions on evicting Seller-tenants in response to the Covid-19 pandemic. Buyer is cautioned to review these issues with its attorney, insurance carrier and lender. Keller Williams Form 15, Attorney Review Addendum can be used for the attorney review.

4. ESCALATION.

EXPLANATION. NWMLS Form 35 E—Escalation Addendum allows a Buyer to make an offer which may escalate to an amount above a Competing Offer, but with a maximum price. For example, the Buyer might make an offer of $750,000 with an escalation of $5,000 over a Competing Offer up to a maximum price of $800,000. Buyers are cautioned that if they make an offer that includes an Escalation Addendum, they have disclosed the maximum amount they are willing to pay (e.g., $800,000), something the Buyer would not normally disclose. The Seller might simply ignore the Escalation Addendum and make a counteroffer at the maximum price disclosed by the Buyer. There is often confusion about whether the Competing Offer is like the Buyer's offer. For example, the Competing Offer may have Buyer or Seller credits different from the Buyer's offer which were not considered when the Listing Broker provided the Competing Offer and calculated the new price for Buyer. Buyers are cautioned to work closely with the Buyer's Broker to determine if they want to include an Escalation Addendum as the better option in a multiple-offer scenario may be for Buyer to come in with its highest and best offer at the outset to avoid in confusion about a comparison to a Competing Offer.

5. FOREIGN INVESTMENT IN REAL PROPERTY ACT ("FIRPTA").

EXPLANATION. Subject to certain exceptions, FIRPTA may require a foreign Seller to pay the IRS up 15% of the total consideration paid to it in a sale; however, it is the Buyer who is obligated to withhold the funds and remit them to the IRS. Failure to do so, obligates the Buyer to pay the amount not withheld. To protect the Buyer, the Seller is required to provide the FIRPTA certificate to the Closing Agent within 10 days of mutual acceptance in which Seller discloses its potential status as a foreign person. If the Seller fails to provide the certificate, the Buyer may give notice to the Seller of its right to terminate and may terminate if Seller fails within 3 days to respond to the Buyer's notice. Buyer is cautioned to be aware of its obligations under FIRPTA.

6. SAFETY.

EXPLANATION. Buyer is reminded that upon taking possession following closing, it should immediately change locks and alarm codes. If the Buyer purchased a warranty as part of closing, some or all these charges may be covered by the warranty.

D. WIRE FRAUD AND IDENTITY THEFT.

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EXPLANATION. A hacker, impersonating a broker or escrow, and typically using the broker or escrow's logo and e-mail address, may instruct a Buyer or Seller to wire funds to a bogus account believed by the Buyer or Seller to be the broker or escrow trust account.

TO PREVENT WIRE FRAUD, NEVER WIRE FUNDS WITHOUT FIRST CALLING THE KNOWN PHONE NUMBER FOR THE BROKER OR ESCROW AND CONFIRMING THE WIRE INSTRUCTIONS. DO NOT RELY UPON E-MAIL COMMUNICATIONS.

Further, to prevent the potential of wire fraud and identify theft, assure that all e-mail communications involving your confidential information (e.g., information not readily available to the public) sent by or to you from your broker, escrow, your lender or other trusted advisor is communicated in an encrypted format.

Buyers are cautioned about the importance of carefully reviewing the provisions of a proposed purchase and sale agreement (a "Sale Agreement") with an attorney experienced in real estate matters before executing the Sale Agreement. Buyers are cautioned that the waiver of statutory rights, buyer-favorable contract addenda, contingencies and/or conditions may result in significant risk to the Buyer.

Please confirm by initialing below that you are aware that there may be monetary and other risks to you if you waive your statutory rights, buyer-favorable addenda, contingencies and/or conditions in your purchase offer.

Authentisign
EH 10/10/24 (Initial and Date). Buyer acknowledges he/she has read this Buyer Advisory and that there are risks in waiving or excluding statutory rights, buyer-favorable addenda, contingencies or conditions in a purchase offer.

_____ (Initial and Date). Buyer acknowledges he/she has read this Buyer Advisory and that there are risks in waiving or excluding statutory rights, buyer-favorable addenda, contingencies or conditions in a purchase offer.

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GUIDE TO OBTAINING A HOME INSPECTION

OBTAINING A PROFESSIONAL HOME INSPECTION IS ONE OF THE MOST IMPORTANT THINGS A BUYER CAN DO FOR THEIR PROTECTION. A professional home inspection report will provide the buyer with detailed information about the home's physical condition, its systems and fixtures and usually note any potential future problems. The buyer should carefully review an inspector's proposal to determine the scope of the inspection. Some home inspectors may not inspect heating and cooling systems, the roof or other systems or components. Additional information about inspections and inspectors is available from the National Association of Home Inspectors at: www.nahi.org/wa-washington-home-inspector.asp or the InterNational Association of Certified Home Inspectors at www.nachi.org. where buyers can also review state home inspector requirements and standards of practice for inspectors.

Washington *Licensure* ***(*** SB 6606***)*** ***enacted in 2008.*** Requires the licensure of home inspectors and establishes various qualifications for licensure. **As of September 1, 2009, inspectors are required to have a license** to inspect.

Inspection of property is beyond the scope of expertise of a real estate licensee, but real estate licensees can provide buyers with a list of local inspectors upon request. **It is not the policy of Keller Williams Realty or its associates to recommend a specific inspector**. Agents must also disclose in writing any relationships with any home inspectors that may be used by buyers or sellers. Buyers should not rely upon reports done for others (previous buyers and/or sellers), because the report may not be accurate and buyers may have no recourse against an inspector they have not retained. Most residential sale contracts contain a clause that allows the buyer to withdraw from the agreement if a professional inspection they have done shows defects in the property. You will want to take advantage of this important right by obtaining your own professional home inspection report from a licensed professional inspector within the time frame specified in the sale contract. Unless otherwise provided for in the Sale Agreement, the cost of the inspection will not be refunded should you withdraw from the Agreement.

AuthentiSIGN
Eric Hill 10/10/24

Signature Date

Signature Date

(Revised Sept 2009)

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INSPECTOR REFERRAL DISCLOSURE

INSPECTOR REFERRAL DISCLOSURE. Washington State law requires that a real estate broker, who refers a home inspector to a buyer or seller with whom the broker has a current or past relationship including, but not limited to, a business or familial relationship, fully disclose in writing to the buyer or seller the nature of the relationship.

The undersigned real estate broker ("Broker") makes the following disclosure regarding the below Inspector(s) referred by Broker to Buyer/Seller:

A. Trinity Home Inspections
Name of Inspector

Business
Nature of Relationship with Broker

B. WIN Home Inspections
Name of Inspector

Business
Nature of Relationship with Broker

C. Pillar to Post
Name of Inspector

Business
Nature of Relationship with Broker

Keller Williams Western Realty
Firm (Company)

Amelia Campbell 10/10/24
By: (Broker) Date

Buyer/Seller hereby acknowledges receipt of a copy of this Inspector Referral Disclosure.

Eric Hill 10/10/24
Buyer/Seller Date

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WASHINGTON REALTORS®



Real estate buyers and sellers are targets for wire fraud and many have lost hundreds of thousands of dollars because they failed to take **two simple steps**:

- Obtain the phone number of your real estate broker and your escrow agent at your first meeting;
- Call the known phone number to speak directly with your broker or escrow officer to confirm wire instructions PRIOR to wiring.

Amelia Campbell	(360)303-4164
Broker's Name	**Broker's Phone**
Directed by the contract	
Escrow Officer's Name	**Escrow Officer's Phone**

My real estate broker or escrow officer reviewed this pamphlet with me.

AuthentiSIGN

Eric Hill 10/10/24

Sign **Date**

CALL BEFORE YOU WIRE

Beware of the following scam:

1. An email account is hacked (this could be broker's, escrow's, or consumer's email).
2. Hacker monitors the account, waiting for the time when consumer must wire funds. Broker, escrow, and consumer have no knowledge they are being monitored.
3. Hacker, impersonating broker or escrow, instructs consumer to wire funds immediately. The wire instructions are for an account controlled by hacker. These instructions often create a sense of urgency and often explain that the broker or escrow officer cannot be reached by phone so any follow-up must be by email. When consumer replies to this email, consumer's email is diverted to hacker.
4. Consumer wires the funds which are stolen by hacker with no recourse for consumer.

Never wire funds without first calling the known phone number for broker or escrow and confirming the wire instructions. Do not rely upon e-mail communications.

Washington REALTORS · Washington State Department of Licensing · Northwest Multiple Listing Service · dfi Washington State Department of Financial Institutions · Office of the Insurance Commissioner Washington State

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AFFILIATED BUSINESS ARRANGEMENT DISCLOSURE

The purpose of this notice is to inform you that the controlling principal(s) of the following real estate brokerages (the "Firms") has/have a relevant business relationship with settlement services providers listed below.

The Firms: Keller Williams Western Realty / Keller Williams North Sound Marysville / Keller Williams Everett, Keller Williams North Seattle / Keller Williams Downtown Seattle / Keller Wiliams Eastside / Keller Wiliams Tacoma / Keller Williams South Sound.

Settlement Services Providers:

Envoy Mortgage, Ltd.

The Firms listed above have a relevant business relationship with Envoy Mortgage, Ltd. (Envoy Mortgage). Specifically, one of the Firms' controlling principals has a relevant ownership interest in Envoy Mortgage's parent company.

KELLER Mortgage

The Firms listed above are independently operated franchisees of Keller Williams Realty Inc, which has a relevant ownership interest in Keller Mortgage LLC.

APPROVED Title & Escrow

The Firms listed above have a relevant business relationship with Approved Title & Escrow. Specifically, one of the Firms' controlling principals has a relevant ownership interest in Approved Title & Escrow.

Northwest Escrow (dba Barlow Escrow)

The Firms listed above have a relevant business relationship with Northwest Escrow. Specifically, a controlling principal of Keller Williams Everett and Keller Williams North Sound Marysville has a relevant ownership interest in Northwest Escrow.

AMERICA'S PREFERRED Home Warranty, Inc.

America's Preferred Home Warranty, Inc., pays a reasonable fee to **the Firms listed above** and its real estate brokers for compensable services which may include the collection of property data. This data may include information about the purchased property (e.g. square footage, number of bedrooms and bathrooms, garage type, etc.), appliances (e.g. brand, model, year, etc.), home buyer's contact information, and home inspection results.

Neither the Firms nor America's Preferred Home Warranty will sell your information to outside parties. Any party who performs services for the Firms are required to protect any customer information and may only use it in connection with performing those services. You are not required to release the aforementioned data to America's Preferred Home Warranty Inc. Your compliance with the collection of this information is purely voluntary during the real estate transaction.

PLACE, Inc.

The Firms listed above have a relevant business relationship with PLACE, Inc. Specifically, one of the Firms' controlling principals has a relevant ownership interest in PLACE, Inc., which is a real estate services and technology company that owns and operates real estate sales teams, some of which are comprised of real estate agents who hang their licenses at the Firms.

ACKNOWLEDGMENT

I have read this Affiliated Business Arrangement Disclosure. **I UNDERSTAND THAT (1) I AM NOT REQUIRED TO PURCHASE ANY GOODS OR SERVCIES FROM ANY OF THE BUSINESSES IDENTIFIED ABOVE; (2) THERE ARE OTHER SETTLEMENT SERVICE PROVIDERS THAT PROVIDE THE SAME OR SIMILAR SERVICES OFFERED BY THE BUSINESSES IDENTIFIED ABOVE; AND (3) I AM FREE TO SHOP AROUND AND INDEPENDENTLY DETERMINE WHICH SERVICE PROVIDERS PROVIDE THE BEST SERVICES AND/OR THE BEST RATES.**

AuthentiSIGN

Eric Hill 10/10/24

Client's Signature Date

Client's Signature Date

Authentisign ID: 4E







Protect Your Family From Lead in Your Home

United States Environmental Protection Agency

United States Consumer Product Safety Commission

United States Department of Housing and Urban Development

March 2021

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Are You Planning to Buy or Rent a Home Built Before 1978?

Did you know that many homes built before 1978 have **lead-based paint**? Lead from paint, chips, and dust can pose serious health hazards.

Read this entire brochure to learn:

- How lead gets into the body
- How lead affects health
- What you can do to protect your family
- Where to go for more information

Before renting or buying a pre-1978 home or apartment, federal law requires:

- Sellers must disclose known information on lead-based paint or lead-based paint hazards before selling a house.
- Real estate sales contracts must include a specific warning statement about lead-based paint. Buyers have up to 10 days to check for lead.
- Landlords must disclose known information on lead-based paint or lead-based paint hazards before leases take effect. Leases must include a specific warning statement about lead-based paint.

If undertaking renovations, repairs, or painting (RRP) projects in your pre-1978 home or apartment:

- Read EPA's pamphlet, *The Lead-Safe Certified Guide to Renovate Right,* to learn about the lead-safe work practices that contractors are required to follow when working in your home (see page 12).



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Simple Steps to Protect Your Family from Lead Hazards

If you think your home has lead-based paint:

- Don't try to remove lead-based paint yourself.
- Always keep painted surfaces in good condition to minimize deterioration.
- Get your home checked for lead hazards. Find a certified inspector or risk assessor at epa.gov/lead.
- Talk to your landlord about fixing surfaces with peeling or chipping paint.
- Regularly clean floors, window sills, and other surfaces.
- Take precautions to avoid exposure to lead dust when remodeling.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe certified renovation firms.
- Before buying, renting, or renovating your home, have it checked for lead-based paint.
- Consult your health care provider about testing your children for lead. Your pediatrician can check for lead with a simple blood test.
- Wash children's hands, bottles, pacifiers, and toys often.
- Make sure children eat healthy, low-fat foods high in iron, calcium, and vitamin C.
- Remove shoes or wipe soil off shoes before entering your house.

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Lead Gets into the Body in Many Ways

Adults and children can get lead into their bodies if they:

- Breathe in lead dust (especially during activities such as renovations, repairs, or painting that disturb painted surfaces).
- Swallow lead dust that has settled on food, food preparation surfaces, and other places.
- Eat paint chips or soil that contains lead.

Lead is especially dangerous to children under the age of 6.

- At this age, children's brains and nervous systems are more sensitive to the damaging effects of lead.
- Children's growing bodies absorb more lead.
- Babies and young children often put their hands and other objects in their mouths. These objects can have lead dust on them.



Women of childbearing age should know that lead is dangerous to a developing fetus.

- Women with a high lead level in their system before or during pregnancy risk exposing the fetus to lead through the placenta during fetal development.

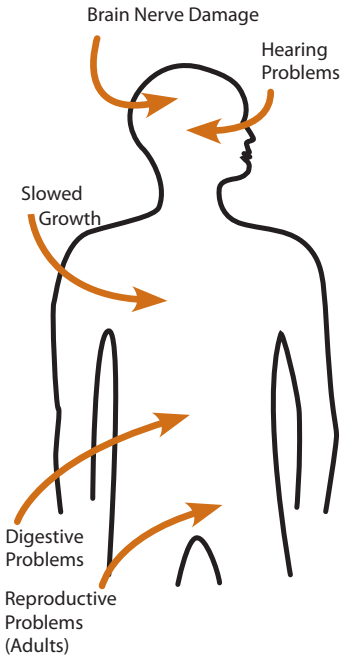
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Health Effects of Lead

Lead affects the body in many ways. It is important to know that even exposure to low levels of lead can severely harm children.

In children, exposure to lead can cause:

- Nervous system and kidney damage
- Learning disabilities, attention-deficit disorder, and decreased intelligence
- Speech, language, and behavior problems
- Poor muscle coordination
- Decreased muscle and bone growth
- Hearing damage



While low-lead exposure is most common, exposure to high amounts of lead can have devastating effects on children, including seizures, unconsciousness, and in some cases, death.

Although children are especially susceptible to lead exposure, lead can be dangerous for adults, too.

In adults, exposure to lead can cause:

- Harm to a developing fetus
- Increased chance of high blood pressure during pregnancy
- Fertility problems (in men and women)
- High blood pressure
- Digestive problems
- Nerve disorders
- Memory and concentration problems
- Muscle and joint pain

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Check Your Family for Lead

Get your children and home tested if you think your home has lead.

Children's blood lead levels tend to increase rapidly from 6 to 12 months of age, and tend to peak at 18 to 24 months of age.

Consult your doctor for advice on testing your children. A simple blood test can detect lead. Blood lead tests are usually recommended for:

- Children at ages 1 and 2
- Children or other family members who have been exposed to high levels of lead
- Children who should be tested under your state or local health screening plan

Your doctor can explain what the test results mean and if more testing will be needed.

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Where Lead-Based Paint Is Found

In general, the older your home or childcare facility, the more likely it has lead-based paint.[1]

Many homes, including private, federally-assisted, federally-owned housing, and childcare facilities built before 1978 have lead-based paint. In 1978, the federal government banned consumer uses of lead-containing paint.[2]

Learn how to determine if paint is lead-based paint on page 7.

Lead can be found:

- In homes and childcare facilities in the city, country, or suburbs,
- In private and public single-family homes and apartments,
- On surfaces inside and outside of the house, and
- In soil around a home. (Soil can pick up lead from exterior paint or other sources, such as past use of leaded gas in cars.)

Learn more about where lead is found at epa.gov/lead.

[1] "Lead-based paint" is currently defined by the federal government as paint with lead levels greater than or equal to 1.0 milligram per square centimeter (mg/cm^2), or more than 0.5% by weight.

[2] "Lead-containing paint" is currently defined by the federal government as lead in new dried paint in excess of 90 parts per million (ppm) by weight.

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Identifying Lead-Based Paint and Lead-Based Paint Hazards

Deteriorated lead-based paint (peeling, chipping, chalking, cracking, or damaged paint) is a hazard and needs immediate attention. **Lead-based paint** may also be a hazard when found on surfaces that children can chew or that get a lot of wear and tear, such as:

- On windows and window sills
- Doors and door frames
- Stairs, railings, banisters, and porches

Lead-based paint is usually not a hazard if it is in good condition and if it is not on an impact or friction surface like a window.

Lead dust can form when lead-based paint is scraped, sanded, or heated. Lead dust also forms when painted surfaces containing lead bump or rub together. Lead paint chips and dust can get on surfaces and objects that people touch. Settled lead dust can reenter the air when the home is vacuumed or swept, or when people walk through it. EPA currently defines the following levels of lead in dust as hazardous:

- 10 micrograms per square foot (µg/ft^2) and higher for floors, including carpeted floors
- 100 µg/ft^2 and higher for interior window sills

Lead in soil can be a hazard when children play in bare soil or when people bring soil into the house on their shoes. EPA currently defines the following levels of lead in soil as hazardous:

- 400 parts per million (ppm) and higher in play areas of bare soil
- 1,200 ppm (average) and higher in bare soil in the remainder of the yard

Remember, lead from paint chips—which you can see—and lead dust—which you may not be able to see—both can be hazards.

The only way to find out if paint, dust, or soil lead hazards exist is to test for them. The next page describes how to do this.

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Checking Your Home for Lead

You can get your home tested for lead in several different ways:

- A lead-based paint **inspection** tells you if your home has lead-based paint and where it is located. It won't tell you whether your home currently has lead hazards. A trained and certified testing professional, called a lead-based paint inspector, will conduct a paint inspection using methods, such as:
  - Portable x-ray fluorescence (XRF) machine
  - Lab tests of paint samples



- A **risk assessment** tells you if your home currently has any lead hazards from lead in paint, dust, or soil. It also tells you what actions to take to address any hazards. A trained and certified testing professional, called a risk assessor, will:
  - Sample paint that is deteriorated on doors, windows, floors, stairs, and walls
  - Sample dust near painted surfaces and sample bare soil in the yard
  - Get lab tests of paint, dust, and soil samples
- A combination inspection and risk assessment tells you if your home has any lead-based paint and if your home has any lead hazards, and where both are located.

Be sure to read the report provided to you after your inspection or risk assessment is completed, and ask questions about anything you do not understand.

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Checking Your Home for Lead, continued

In preparing for renovation, repair, or painting work in a pre-1978 home, Lead-Safe Certified renovators (see page 12) may:

- Take paint chip samples to determine if lead-based paint is present in the area planned for renovation and send them to an EPA-recognized lead lab for analysis. In housing receiving federal assistance, the person collecting these samples must be a certified lead-based paint inspector or risk assessor
- Use EPA-recognized tests kits to determine if lead-based paint is absent (but not in housing receiving federal assistance)
- Presume that lead-based paint is present and use lead-safe work practices

There are state and federal programs in place to ensure that testing is done safely, reliably, and effectively. Contact your state or local agency for more information, visit epa.gov/lead, or call **1-800-424-LEAD (5323)** for a list of contacts in your area.[3]

[3] Hearing- or speech-challenged individuals may access this number through TTY by calling the Federal Relay Service at [redacted]

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What You Can Do Now to Protect Your Family

If you suspect that your house has lead-based paint hazards, you can take some immediate steps to reduce your family's risk:

- If you rent, notify your landlord of peeling or chipping paint.
- Keep painted surfaces clean and free of dust. Clean floors, window frames, window sills, and other surfaces weekly. Use a mop or sponge with warm water and a general all-purpose cleaner. (Remember: never mix ammonia and bleach products together because they can form a dangerous gas.)
- Carefully clean up paint chips immediately without creating dust.
- Thoroughly rinse sponges and mop heads often during cleaning of dirty or dusty areas, and again afterward.
- Wash your hands and your children's hands often, especially before they eat and before nap time and bed time.
- Keep play areas clean. Wash bottles, pacifiers, toys, and stuffed animals regularly.
- Keep children from chewing window sills or other painted surfaces, or eating soil.
- When renovating, repairing, or painting, hire only EPA- or state-approved Lead-Safe Certified renovation firms (see page 12).
- Clean or remove shoes before entering your home to avoid tracking in lead from soil.
- Make sure children eat nutritious, low-fat meals high in iron, and calcium, such as spinach and dairy products. Children with good diets absorb less lead.

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Reducing Lead Hazards

Disturbing lead-based paint or removing lead improperly can increase the hazard to your family by spreading even more lead dust around the house.



- In addition to day-to-day cleaning and good nutrition, you can **temporarily** reduce lead-based paint hazards by taking actions, such as repairing damaged painted surfaces and planting grass to cover lead-contaminated soil. These actions are not permanent solutions and will need ongoing attention.
- You can minimize exposure to lead when renovating, repairing, or painting by hiring an EPA- or state-certified renovator who is trained in the use of lead-safe work practices. If you are a do-it-yourselfer, learn how to use lead–safe work practices in your home.
- To remove lead hazards permanently, you should hire a certified lead abatement contractor. Abatement (or permanent hazard elimination) methods include removing, sealing, or enclosing lead-based paint with special materials. Just painting over the hazard with regular paint is not permanent control.

Always use a certified contractor who is trained to address lead hazards safely.

- Hire a Lead-Safe Certified firm (see page 12) to perform renovation, repair, or painting (RRP) projects that disturb painted surfaces.
- To correct lead hazards permanently, hire a certified lead abatement contractor. This will ensure your contractor knows how to work safely and has the proper equipment to clean up thoroughly.

Certified contractors will employ qualified workers and follow strict safety rules as set by their state or by the federal government.

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Reducing Lead Hazards, continued

If your home has had lead abatement work done or if the housing is receiving federal assistance, once the work is completed, dust cleanup activities must be conducted until clearance testing indicates that lead dust levels are below the following levels:

- 10 micrograms per square foot (µg/ft^2) for floors, including carpeted floors
- 100 µg/ft^2 for interior windows sills
- 400 µg/ft^2 for window troughs

Abatements are designed to permanently eliminate lead-based paint hazards. However, lead dust can be reintroduced into an abated area.

- Use a HEPA vacuum on all furniture and other items returned to the area, to reduce the potential for reintroducing lead dust.
- Regularly clean floors, window sills, troughs, and other hard surfaces with a damp cloth or sponge and a general all-purpose cleaner.

Please see page 9 for more information on steps you can take to protect your home after the abatement. For help in locating certified lead abatement professionals in your area, call your state or local agency (see pages 15 and 16), epa.gov/lead, or call 1-800-424-LEAD.

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Renovating, Repairing or Painting a Home with Lead-Based Paint

If you hire a contractor to conduct renovation, repair, or painting (RRP) projects in your pre-1978 home or childcare facility (such as pre-school and kindergarten), your contractor must:

- Be a Lead-Safe Certified firm approved by EPA or an EPA-authorized state program
- Use qualified trained individuals (Lead-Safe Certified renovators) who follow specific lead-safe work practices to prevent lead contamination
- Provide a copy of EPA's lead hazard information document, *The Lead-Safe Certified Guide to Renovate Right*



RRP contractors working in pre-1978 homes and childcare facilities must follow lead-safe work practices that:

- **Contain the work area.** The area must be contained so that dust and debris do not escape from the work area. Warning signs must be put up, and plastic or other impermeable material and tape must be used.
- **Avoid renovation methods that generate large amounts of lead-contaminated dust.** Some methods generate so much lead-contaminated dust that their use is prohibited. They are:
  - Open-flame burning or torching
  - Sanding, grinding, planing, needle gunning, or blasting with power tools and equipment not equipped with a shroud and HEPA vacuum attachment
  - Using a heat gun at temperatures greater than 1100°F
- **Clean up thoroughly.** The work area should be cleaned up daily. When all the work is done, the area must be cleaned up using special cleaning methods.
- **Dispose of waste properly.** Collect and seal waste in a heavy duty bag or sheeting. When transported, ensure that waste is contained to prevent release of dust and debris.

To learn more about EPA's requirements for RRP projects, visit epa.gov/getleadsafe, or read *The Lead-Safe Certified Guide to Renovate Right*.

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Other Sources of Lead

Lead in Drinking Water

The most common sources of lead in drinking water are lead pipes, faucets, and fixtures.

Lead pipes are more likely to be found in older cities and homes built before 1986.

You can't smell or taste lead in drinking water.

To find out for certain if you have lead in drinking water, have your water tested.

Remember older homes with a private well can also have plumbing materials that contain lead.

Important Steps You Can Take to Reduce Lead in Drinking Water

- Use only cold water for drinking, cooking and making baby formula. Remember, boiling water does not remove lead from water.
- Before drinking, flush your home's pipes by running the tap, taking a shower, doing laundry, or doing a load of dishes.
- Regularly clean your faucet's screen (also known as an aerator).
- If you use a filter certified to remove lead, don't forget to read the directions to learn when to change the cartridge. Using a filter after it has expired can make it less effective at removing lead.

Contact your water company to determine if the pipe that connects your home to the water main (called a service line) is made from lead. Your area's water company can also provide information about the lead levels in your system's drinking water.

For more information about lead in drinking water, please contact EPA's Safe Drinking Water Hotline at [redacted] If you have other questions about lead poisoning prevention, call 1-800 424-LEAD.*

Call your local health department or water company to find out about testing your water, or visit epa.gov/safewater for EPA's lead in drinking water information. Some states or utilities offer programs to pay for water testing for residents. Contact your state or local water company to learn more.

* Hearing- or speech-challenged individuals may access this number through TTY by calling the Federal Relay Service at [redacted]

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Other Sources of Lead, continued

- **Lead smelters** or other industries that release lead into the air.
- **Your job.** If you work with lead, you could bring it home on your body or clothes. Shower and change clothes before coming home. Launder your work clothes separately from the rest of your family's clothes.
- **Hobbies** that use lead, such as making pottery or stained glass, or refinishing furniture. Call your local health department for information about hobbies that may use lead.
- Old **toys** and **furniture** may have been painted with lead-containing paint. Older toys and other children's products may have parts that contain lead.[4]
- Food and liquids cooked or stored in **lead crystal** or **lead-glazed pottery or porcelain** may contain lead.
- Folk remedies, such as **"greta"** and **"azarcon,"** used to treat an upset stomach.

[4] In 1978, the federal government banned toys, other children's products, and furniture with lead-containing paint. In 2008, the federal government banned lead in most children's products. The federal government currently bans lead in excess of 100 ppm by weight in most children's products.

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For More Information

The National Lead Information Center
Learn how to protect children from lead poisoning and get other information about lead hazards on the Web at epa.gov/lead and hud.gov/lead, or call **1-800-424-LEAD (5323).**

EPA's Safe Drinking Water Hotline
For information about lead in drinking water, call [redacted], or visit epa.gov/safewater for information about lead in drinking water.

Consumer Product Safety Commission (CPSC) Hotline
For information on lead in toys and other consumer products, or to [redacted] consumer product or a product-related injury, call [redacted], or visit CPSC's website at cpsc.gov or saferproducts.gov.

State and Local Health and Environmental Agencies
Some states, tribes, and cities have their own rules related to lead-based paint. Check with your local agency to see which laws apply to you. Most agencies can also provide information on finding a lead abatement firm in your area, and on possible sources of financial aid for reducing lead hazards. Receive up-to-date address and phone information for your state or local contacts on the Web at epa.gov/lead, or contact the National Lead Information Center at **1-800-424-LEAD.**

Hearing- or speech-challenged individuals may access any of the phone numbers in this broc[redacted]Y by calling the toll-free Federal Relay Service at [redacted]9.

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U. S. Environmental Protection Agency (EPA) Regional Offices

The mission of EPA is to protect human health and the environment. Your Regional EPA Office can provide further information regarding regulations and lead protection programs.

Region 1 (Connecticut, Massachusetts, Maine, New Hampshire, Rhode Island, Vermont)

Regional Lead Contact
U.S. EPA Region 1
5 Post Office Square, Suite 100, OES 05-4
Boston, MA 02109-3912
[redacted]

Region 2 (New Jersey, New York, Puerto Rico, Virgin Islands)

Regional Lead Contact
U.S. EPA Region 2
2890 Woodbridge Avenue
Building 205, Mail Stop 225
Edison, NJ 08837-3679
(732) 906-6809

Region 3 (Delaware, Maryland, Pennsylvania, Virginia, DC, West Virginia)

Regional Lead Contact
U.S. EPA Region 3
1650 Arch Street
Philadelphia, PA 19103
[redacted]

Region 4 (Alabama, Florida, Georgia, Kentucky, Mississippi, North Carolina, South Carolina, Tennessee)

Regional Lead Contact
U.S. EPA Region 4
AFC Tower, 12th Floor, Air, Pesticides & Toxics
61 Forsyth Street, SW
Atlanta, GA 30303
[redacted]

Region 5 (Illinois, Indiana, Michigan, Minnesota, Ohio, Wisconsin)

Regional Lead Contact
U.S. EPA Region 5 (LL-17J)
77 West Jackson Boulevard
Chicago, IL 60604-3666
(312) 353-3808

Region 6 (Arkansas, Louisiana, New Mexico, Oklahoma, Texas, and 66 Tribes)

Regional Lead Contact
U.S. EPA Region 6
1445 Ross Avenue, 12th Floor
Dallas, TX 75202-2733
[redacted]

Region 7 (Iowa, Kansas, Missouri, Nebraska)

Regional Lead Contact
U.S. EPA Region 7
11201 Renner Blvd.
Lenexa, KS 66219
[redacted]

Region 8 (Colorado, Montana, North Dakota, South Dakota, Utah, Wyoming)

Regional Lead Contact
U.S. EPA Region 8
1595 Wynkoop St.
Denver, CO 80202
[redacted]

Region 9 (Arizona, California, Hawaii, Nevada)

Regional Lead Contact
U.S. EPA Region 9 (CMD-4-2)
75 Hawthorne Street
San Francisco, CA 94105
[redacted]

Region 10 (Alaska, Idaho, Oregon, Washington)

Regional Lead Contact
U.S. EPA Region 10 (20-C04)
Air and Toxics Enforcement Section
1200 Sixth Avenue, Suite 155
Seattle, WA 98101
[redacted]

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Consumer Product Safety Commission (CPSC)

The CPSC protects the public against unreasonable risk of injury from consumer products through education, safety standards activities, and enforcement. Contact CPSC for further information regarding consumer product safety and regulations.

CPSC
4330 East West Highway
Bethesda, MD 20814-4421
[redacted]
cpsc.gov or saferproducts.gov

U. S. Department of Housing and Urban Development (HUD)

HUD's mission is to create strong, sustainable, inclusive communities and quality affordable homes for all. Contact to Office of Lead Hazard Control and Healthy Homes for further information regarding the Lead Safe Housing Rule, which protects families in pre-1978 assisted housing, and for the lead hazard control and research grant programs.

HUD
451 Seventh Street, SW, Room 8236
Washington, DC 20410-3000
[redacted]
hud.gov/lead

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U. S. EPA Washington DC 20460
U. S. CPSC Bethesda MD 20814
U. S. HUD Washington DC 20410

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March 2021

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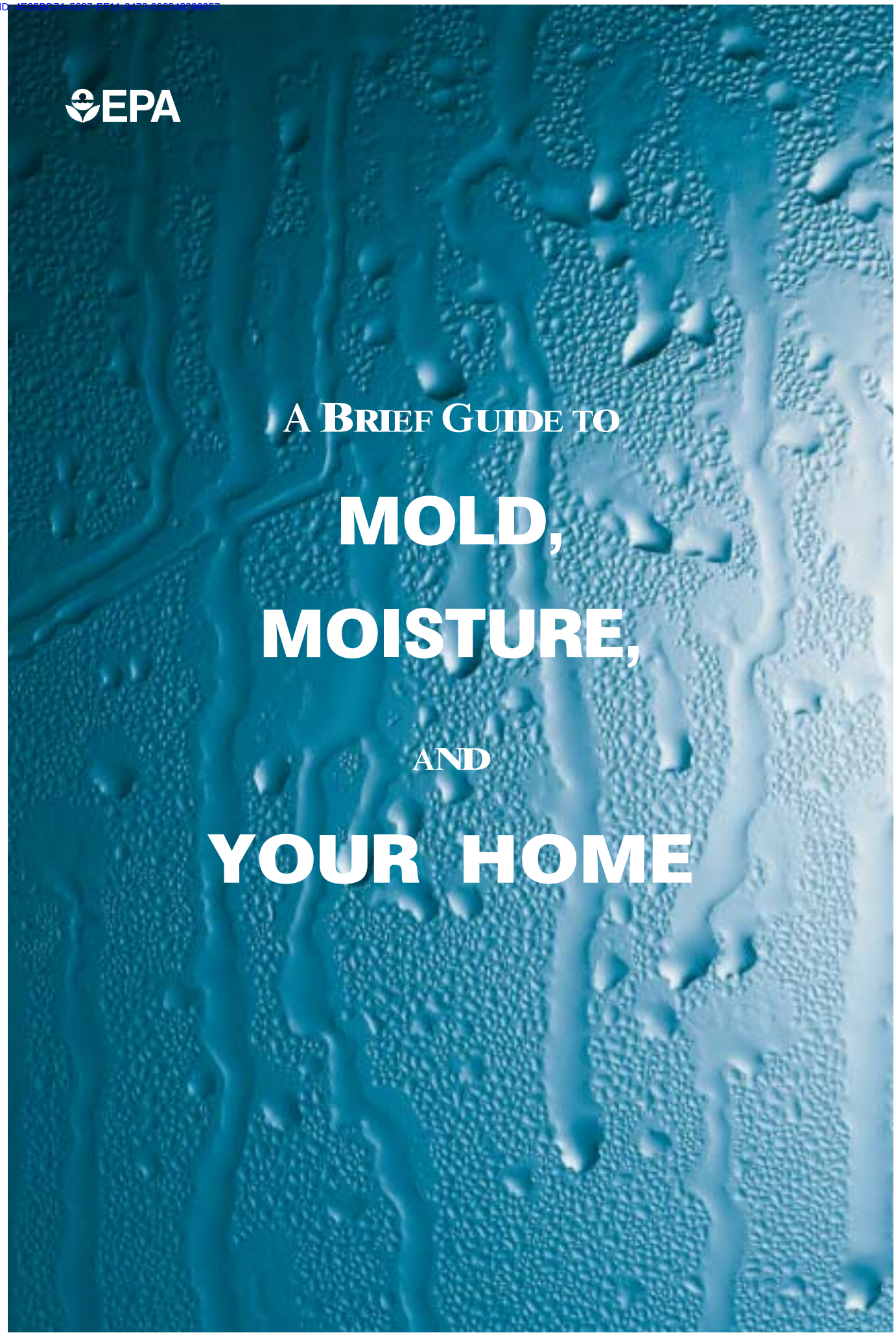
IMPORTANT!

Lead From Paint, Dust, and Soil in and Around Your Home Can Be Dangerous if Not Managed Properly

- Children under 6 years old are most at risk for lead poisoning in your home.
- Lead exposure can harm young children and babies even before they are born.
- Homes, schools, and child care facilities built before 1978 are likely to contain lead-based paint.
- Even children who seem healthy may have dangerous levels of lead in their bodies.
- Disturbing surfaces with lead-based paint or removing lead-based paint improperly can increase the danger to your family.
- People can get lead into their bodies by breathing or swallowing lead dust, or by eating soil or paint chips containing lead.
- People have many options for reducing lead hazards. Generally, lead-based paint that is in good condition is not a hazard (see page 10).

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EPA 402-K-02-003

This Guide provides information and guidance for homeowners and renters on how to clean up residential mold problems and how to prevent mold growth.

U.S. Environmental Protection Agency
Office of Air and Radiation
Indoor Environments Division
1200 Pennsylvania Avenue
Mailcode: 6609J
Washington, DC 20460
www.epa.gov/iaq

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A Brief Guide to Mold, Moisture, and Your Home

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MOLD BASICS

- **The key to mold control is moisture control.**
- **If mold is a problem in your home, you should clean up the mold promptly *and* fix the water problem.**
- **It is important to dry water-damaged areas and items within 24-48 hours to prevent mold growth.**

Why is mold growing in my home?

Molds are part of the natural environment. Outdoors, molds play a part in nature by breaking down dead organic matter such as fallen leaves and dead trees, but indoors, mold growth should be avoided. Molds reproduce by means of tiny spores; the spores are invisible to the naked eye and float through outdoor and indoor air. Mold may begin growing indoors when mold spores land on surfaces that are wet. There are many types of mold, and none of them will grow without water or moisture.



Mold growing outdoors on firewood. Molds come in many colors; both white and black molds are shown here.

Can mold cause health problems?

Molds are usually not a problem indoors, unless mold spores land on a wet or damp spot and begin growing. Molds have the potential to cause health problems. Molds produce allergens (substances that can cause allergic reactions), irritants, and in some cases, potentially toxic substances (mycotoxins).

Inhaling or touching mold or mold spores may cause allergic reactions in sensitive individuals. Allergic responses include hay fever-type symptoms, such as sneezing, runny nose, red eyes, and skin rash (dermatitis). Allergic reactions to mold are common. They can be immediate or delayed. Molds can also cause asthma attacks in people with asthma who are allergic to mold. In addition, mold exposure can irritate the eyes, skin, nose, throat, and lungs of both mold-

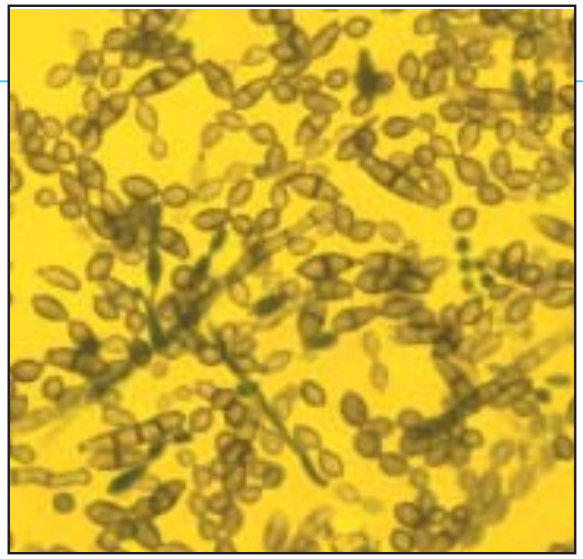
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allergic and non-allergic people. Symptoms other than the allergic and irritant types are not commonly reported as a result of inhaling mold.

Research on mold and health effects is ongoing. This brochure provides a brief overview; it does not describe all potential health effects related to mold exposure. For more detailed information consult a health professional. You may also wish to consult your state or local health department.

How do I get rid of mold?

It is impossible to get rid of all mold and mold spores indoors; some mold spores will be found floating through the air and in house dust. The mold spores will not grow if moisture is not present. Indoor mold growth can and should be prevented or controlled by controlling moisture indoors. If there is mold growth in your home, you must clean up the mold **and** fix the water problem. If you clean up the mold, but don't fix the water problem, then, most likely, the mold problem will come back.



Magnified mold spores.

Molds can gradually destroy the things they grow on. You can prevent damage to your home and furnishings, save money, and avoid potential health problems by controlling moisture and eliminating mold growth.

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MOLD CLEANUP



Leaky window – mold is beginning to rot the wooden frame and windowsill.

If you already have a mold problem – ACT QUICKLY.

Mold damages what it grows on. The longer it grows, the more damage it can cause.

Who should do the cleanup? Who should do the cleanup depends on a number of factors. One consideration is the size of the mold problem. If the moldy area is less than about 10 square feet (less than roughly a 3 ft. by 3 ft. patch), in most cases, you can handle the job yourself, following the guidelines below. However:

- If there has been a lot of water damage, and/or mold growth covers more than 10 square feet, consult the U.S. Environmental Protection Agency (EPA) guide: *Mold Remediation in Schools and Commercial Buildings*. Although focused on schools and commercial

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buildings, this document is applicable to other building types. It is available free by calling the EPA Indoor Air Quality Information Clearinghouse at [redacted], or on the Internet at: www.epa.gov/iaq/molds/mold_remediation.html.

- If you choose to hire a contractor (or other professional service provider) to do the cleanup, make sure the contractor has experience cleaning up mold. Check references and ask the contractor to follow the recommendations in EPA's *Mold Remediation in Schools and Commercial Buildings*, the guidelines of the American Conference of Governmental Industrial Hygenists (ACGIH), or other guidelines from professional or government organizations.

- If you suspect that the heating/ventilation/air conditioning (HVAC) system may be contaminated with mold (it is part of an identified moisture problem, for instance, or there is mold near the intake to the system), consult EPA's guide *Should You Have the Air Ducts in Your Home Cleaned?* before taking further action. Do not run the HVAC system if you know or suspect that it is contaminated with mold - it could spread mold throughout the building. Visit www.epa.gov/iaq/pubs/airduct.html, or call [redacted] for a free copy.

- If the water and/or mold damage was caused by sewage or other contaminated water, then call in a professional who has experience cleaning and fixing buildings damaged by contaminated water.

- If you have health concerns, consult a health professional before starting cleanup.

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MOLD CLEANUP GUIDELINES

Bathroom Tip

Places that are often or always damp can be hard to maintain completely free of mold. If there's some mold in the shower or elsewhere in the bathroom that seems to reappear, increasing the ventilation (running a fan or opening a window) and cleaning more frequently will usually prevent mold from recurring, or at least keep the mold to a minimum.



Tips and techniques The tips and techniques presented in this section will help you clean up your mold problem. Professional cleaners or remediators may use methods not covered in this publication. Please note that mold may cause staining and cosmetic damage. It may not be possible to clean an item so that its original appearance is restored.

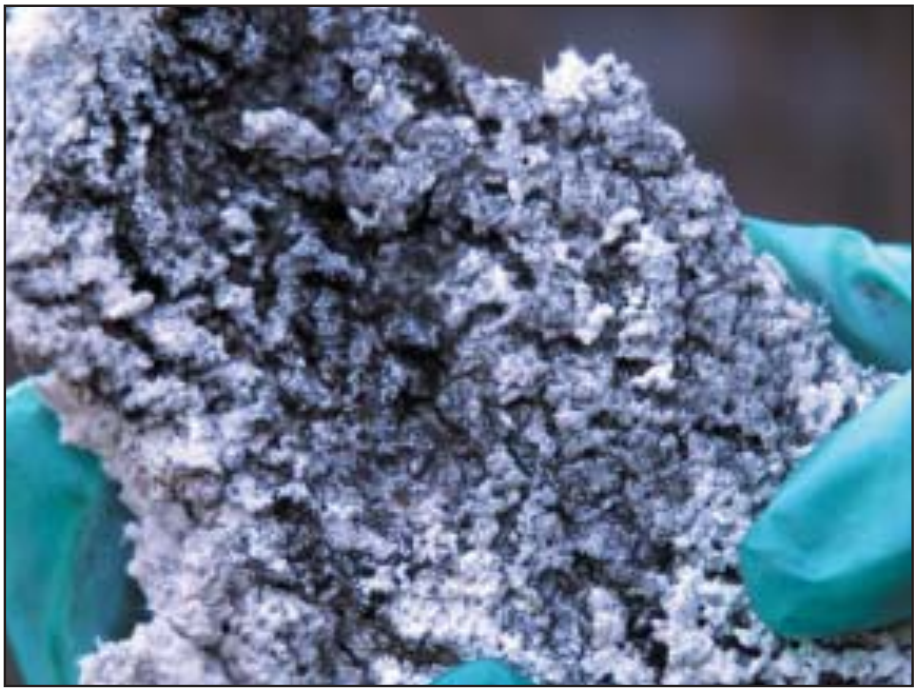
- **Fix plumbing leaks and other water problems as soon as possible. Dry all items completely.**
- **Scrub mold off hard surfaces with detergent and water, and dry completely.**



Mold growing on the underside of a plastic lawnchair in an area where rainwater drips through and deposits organic material.

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Mold growing on a piece of ceiling tile.



- Absorbent or porous materials, such as ceiling tiles and carpet, may have to be thrown away if they become moldy. Mold can grow on or fill in the empty spaces and crevices of porous materials, so the mold may be difficult or impossible to remove completely.
- Avoid exposing yourself or others to mold (see discussions: **What to Wear When Cleaning Moldy Areas** and **Hidden Mold**.)
- Do not paint or caulk moldy surfaces. Clean up the mold and dry the surfaces before painting. Paint applied over moldy surfaces is likely to peel.
- If you are unsure about how to clean an item, or if the item is expensive or of sentimental value, you may wish to consult a specialist. Specialists in furniture repair, restoration, painting, art restoration and conservation, carpet and rug cleaning, water damage, and fire or water restoration are commonly listed in phone books. Be sure to ask for and check references. Look for specialists who are affiliated with professional organizations.

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WHAT TO WEAR WHEN CLEANING MOLDY AREAS



Mold growing on a suitcase stored in a humid basement.

It is important to take precautions to LIMIT YOUR EXPOSURE to mold and mold spores.

- **Avoid breathing in mold or mold spores**. In order to limit your exposure to airborne mold, you may want to wear an N-95 respirator, available at many hardware stores and from companies that advertise on the Internet. (They cost about $12 to $25.) Some N-95 respirators resemble a paper dust mask with a nozzle on the front, others are made primarily of plastic or rubber and have removable cartridges that trap most of the mold spores from entering. In order to be effective, the respirator or mask must fit properly, so carefully follow the instructions supplied with the respirator. Please note that the Occupational Safety and Health Administration (OSHA) requires that respirators fit properly (fit testing) when used in an occupational setting; consult OSHA for more information (800-321-OSHA or osha.gov/).

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- **Wear gloves**. Long gloves that extend to the middle of the forearm are recommended. When working with water and a mild detergent, ordinary household rubber gloves may be used. If you are using a disinfectant, a biocide such as chlorine bleach, or a strong cleaning solution, you should select gloves made from natural rubber, neoprene, nitrile, polyurethane, or PVC (see **Cleanup and Biocides**). Avoid touching mold or moldy items with your bare hands.

- **Wear goggles**. Goggles that do not have ventilation holes are recommended. Avoid getting mold or mold spores in your eyes.



Cleaning while wearing N-95 respirator, gloves, and goggles.

How do I know when the remediation or cleanup is finished?

You must have completely fixed the water or moisture problem before the cleanup or remediation can be considered finished.

- You should have completed mold removal. Visible mold and moldy odors should not be present. Please note that mold may cause staining and cosmetic damage.

- You should have revisited the site(s) shortly after cleanup and it should show no signs of water damage or mold growth.

- People should have been able to occupy or re-occupy the area without health complaints or physical symptoms.

- Ultimately, this is a judgment call; there is no easy answer. If you have concerns or questions call the EPA Indoor Air Quality Information Clearinghouse at [redacted]

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MOISTURE AND MOLD PREVENTION AND CONTROL TIPS

MOISTURE Control is the Key to Mold Control



Mold growing on the surface of a unit ventilator.

- When water leaks or spills occur indoors - **ACT QUICKLY**. If wet or damp materials or areas are dried 24-48 hours after a leak or spill happens, in most cases mold will not grow.
- Clean and repair roof gutters regularly.
- Make sure the ground slopes away from the building foundation, so that water does not enter or collect around the foundation.
- Keep air conditioning drip pans clean and the drain lines unobstructed and flowing properly.

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Condensation on the inside of a windowpane.

- Keep indoor humidity low. If possible, keep indoor humidity below 60 percent (ideally between 30 and 50 percent) relative humidity. Relative humidity can be measured with a moisture or humidity meter, a small, inexpensive ($10-$50) instrument available at many hardware stores.

- If you see condensation or moisture collecting on windows, walls or pipes - ACT QUICKLY to dry the wet surface and reduce the moisture/water source. Condensation can be a sign of high humidity.

Actions that will help to reduce humidity:

- Vent appliances that produce moisture, such as clothes dryers, stoves, and kerosene heaters to the outside where possible. (Combustion appliances such as stoves and kerosene heaters produce water vapor and will increase the humidity unless vented to the outside.)

- Use air conditioners and/or de-humidifiers when needed.

- Run the bathroom fan or open the window when showering. Use exhaust fans or open windows whenever cooking, running the dishwasher or dishwashing, etc.

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Actions that will help prevent condensation:

- Reduce the humidity (see preceeding page).
- Increase ventilation or air movement by opening doors and/or windows, when practical. Use fans as needed.
- Cover cold surfaces, such as cold water pipes, with insulation.
- Increase air temperature.



Mold growing on a wooden headboard in a room with high humidity.

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Renters: Report all plumbing leaks and moisture problems immediately to your building owner, manager, or superintendent. In cases where persistent water problems are not addressed, you may want to contact local, state, or federal health or housing authorities.



Rust is an indicator that condensation occurs on this drainpipe. The pipe should be insulated to prevent condensation.

Testing or sampling for mold

Is sampling for mold needed? **In most cases, if visible mold growth is present, sampling is unnecessary.** Since no EPA or other federal limits have been set for mold or mold spores, sampling cannot be used to check a building's compliance with federal mold standards. Surface sampling may be useful to determine if an area has been adequately cleaned or remediated. Sampling for mold should be conducted by professionals who have specific experience in designing mold sampling protocols, sampling methods, and interpreting results. Sample analysis should follow analytical methods recommended by the American Industrial Hygiene Association (AIHA), the American Conference of Governmental Industrial Hygienists (ACGIH), or other professional organizations.

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HIDDEN MOLD



Mold growing on the back side of wallpaper.

Suspicion of hidden mold You may suspect hidden mold if a building smells moldy, but you cannot see the source, or if you know there has been water damage and residents are reporting health problems. Mold may be hidden in places such as the back side of dry wall, wallpaper, or paneling, the top side of ceiling tiles, the underside of carpets and pads, etc. Other possible locations of hidden mold include areas inside walls around pipes (with leaking or condensing pipes), the surface of walls behind furniture (where condensation forms), inside ductwork, and in roof materials above ceiling tiles (due to roof leaks or insufficient insulation).

Investigating hidden mold problems Investigating hidden mold problems may be difficult and will require caution when the investigation involves disturbing potential sites of mold growth. For example, removal of wallpaper can lead to a massive release of spores if there is mold growing on the underside of the paper. If you believe that you may have a hidden mold problem, consider hiring an experienced professional.

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Cleanup and Biocides Biocides are substances that can destroy living organisms. The use of a chemical or biocide that kills organisms such as mold (chlorine bleach, for example) is not recommended as a routine practice during mold cleanup. There may be instances, however, when professional judgment may indicate its use (for example, when immune-compromised individuals are present). In most cases, it is not possible or desirable to sterilize an area; a background level of mold spores will remain - these spores will not grow if the moisture problem has been resolved. If you choose to use disinfectants or biocides, always ventilate the area and exhaust the air to the outdoors. Never mix chlorine bleach solution with other cleaning solutions or detergents that contain ammonia because toxic fumes could be produced.

Please note: Dead mold may still cause allergic reactions in some people, so it is not enough to simply kill the mold, it must also be removed.



Water stain on a basement wall — locate and fix the source of the water promptly.

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ADDITIONAL RESOURCES

For more information on mold related issues including mold cleanup and moisture control/condensation/humidity issues, you can call the EPA Indoor Air Quality Information Clearinghouse at

[redacted]

Or visit:

www.epa.gov/iaq/molds



Mold growing on fallen leaves..

This document is available on the Environmental Protection Agency, Indoor Environments Division website at: www.epa.gov/iaq/molds/moldguide.html

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NOTES

Acknowledgements

EPA would like to thank Paul Ellringer, PE, CIH, for providing the photo on page 14.

Please note that this document presents recommendations. EPA does not regulate mold or mold spores in indoor air.

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Side Sewers: Before You Buy or Sell Property



GET TO KNOW WHAT'S UNDERGROUND

Side sewer repairs or replacement can be expensive – averaging $5,000 to $15,000 – and can often come as a surprise to property owners when sewage starts coming out of sinks, toilets, bathtubs and other building drains! Property owners should plan for side sewer maintenance and repair just as they do for replacement of roofs, furnaces and other major working systems of the building or residence.

Side sewers are the pipe that connects a building's plumbing to the City-maintained sanitary sewer main. The sewer main carries wastewater from your side sewer to the City's treatment facilities.

To protect the value of your investment and avoid the surprise of costly repairs, the City of Tacoma recommends inspecting a building's side sewer if it is more than 25 years old and/or does not have plastic PVC pipe running from the building to the City sewer main.

WHY DOES THIS MATTER TO ME?

- In Tacoma, property owners are responsible for repair and maintenance of their private side sewer.
- Buildings constructed prior to 1980 are likely to have side sewers made of clay or concrete pipes. These can crack, shift out of place, and/or be subject to intrusion by roots, causing leakage or blockage in the pipe.
- When your side sewer is blocked, sewage from your home can back-up in your pipes and surface through your sinks, toilets, bathtubs and other building drains, causing a health issue as well as a potentially expensive mess. Side sewer blockages are typically caused by failures in the pipe. Potential failures can be easily detected by a simple inspection before they cause a serious problem.
- Rainwater and groundwater that gets into the sanitary sewer system from leaky side sewers, and roof and foundation drains can cause overflows of untreated or partially treated wastewater (sewage) into streets, homes, businesses and local waterways. This rainwater and groundwater should be directed to the local surface water system.
- Just as groundwater can leak into a side sewer, sewage can leak out of a side sewer and become a public health hazard.
- If you know the condition of your property's side sewer, you can better prepare for repair or replacement instead of finding out about a problem when the sewer backs up.

HOW DO I FIND OUT THE CONDITION AND AGE OF A SIDE SEWER AND WHAT IT'S MADE OF? HOW DO I KNOW IF THERE ARE SOURCES OF RAINWATER OR GROUNDWATER GETTING INTO THE SIDE SEWER?

1. Ask the current property owner if there have been any issues with slow-draining plumbing fixtures, sewage backups, or if there have been any inspections or repairs on the side sewer.
2. The City has permit records for some of the properties in Tacoma. To research City of Tacoma permit records, visit www.govme.org and click on ***Permit / Site History*** or call Site Development at [redacted].
3. Hire a side sewer contractor or a drain cleaner to perform a video inspection of the side sewer and to inspect the building for sump pumps, drains, or other sources that may be allowing rainwater or groundwater to enter the side sewer.

NEED HELP PAYING FOR SEWER REPAIRS OR REPLACEMENT?

If your side sewer needs repair or replacement, you may be eligible for a low-interest loan through the City's Sewer Conservation Loan Program. For more information, go to cityoftacoma.org/sewerloan or call [redacted].

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Note: This Tip Sheet does not substitute for codes and regulations.
The applicant is responsible for compliance with all codes and regulations, whether or not described in this document.

More information: City of Tacoma, Planning and Development Services | www.tacomapermits.org [redacted]

To request this information in an alternative format or a reasonable accommodation, please call [redacted] (voice).
TTY or STS users please dial 711 to connect to Washington Relay Services.